

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.

-----X

Date Filed:

KRYSTAL RODRIGUEZ AND JUAN JOSE RODRIGUEZ

SUMMONS

Plaintiffs,

PLAINTIFF DESIGNATES
BRONX COUNTY AS THE
PLACE OF TRIAL

-against-

THE NEW YORK CITY POLICE DEPARTMENT,
and THE CITY OF NEW YORK

BASIS OF VENUE
PLAINTIFF'S
RESIDENCE

Defendants.

-----X

TO THE ABOVE NAMED DEFENDANT(S):

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorneys within 20 days of the service of this summons, exclusive of the day of service (or within 30 days after the service of this summons, exclusive of the day of service if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

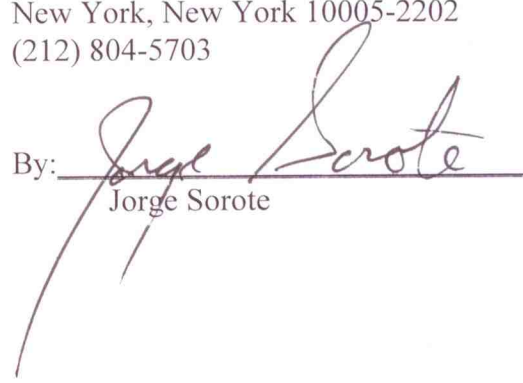
Dated: New York, New York
May 22, 2017

Yours, etc.,

JORGE SOROTE

Attorneys for Plaintiffs
30 Wall Street-Eighth Floor
New York, New York 10005-2202
(212) 804-5703

By:


Jorge Sorote

TO:

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10038

ZACHARY W. CARTER
Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

KRYSTAL RODRIGUEZ and JUAN JOSE RODRIGUEZ

INDEX NO.

Plaintiffs,

-against-

VERIFIED COMPLAINT

THE NEW YORK CITY POLICE DEPARTMENT
and THE CITY OF NEW YORK,

Defendants.

-----X

Plaintiffs, KRYSTAL RODRIGUEZ and JUAN JOSE RODRIGUEZ, by their attorney Jorge Sorote, Esq., with offices at 30 Wall Street-Eighth Floor, New York, NY 10005-2205, complaining of the defendants, sets forth and alleges as follows:

1. At all times herein mentioned Plaintiff KRYSTAL RODRIGUEZ was and is a resident of the City Of New York, County of the Bronx and State of New York.

2. At all times herein mentioned Plaintiff JUAN JOSE RODRIGUEZ was and is a resident of the City Of New York, County of the Bronx and State of New York.

3. The defendant NEW YORK CITY POLICE DEPARTMENT is an agency of New York City and the City of New York a municipality.

4. At all times mentioned members of the NEW YORK CITY POLICE DEPARTMENT are employed by the defendant NEW YORK CITY POLICE DEPARTMENT and were acting in the capacity as agents, servants and employees of defendant City of New York.

5. Upon information and belief on March 18, 2016 members of the NEW YORK CITY POLICE DEPARTMENT were on duty and acting within the scope of their employment and under

the direction of the City of New York and NEW YORK CITY POLICE DEPARTMENT as its agents servants and employees.

6. On March 18, 2016 all members of the NEW YORK CITY POLICE DEPARTMENT assigned to the 41st precinct had been individually hired, screened, tested, interviewed, trained, retrained, investigated, monitored and supervised by the defendants NEW YORK CITY POLICE DEPARTMENT and City of New York.

7. That on March 18, 2016 members of the NEW YORK CITY POLICE DEPARTMENT assigned to the 41st precinct were acting as required by the New York City Patrol Guidelines.

8. On or about March 18, 2016 Plaintiff KRYSTAL RODRIGUEZ was employed by and lawfully inside the premises of Hudson Livery Leasing located at 674 Casanova Street, Bronx New York 10474. At approximately 5:15 PM on that date KRYSTAL RODRIGUEZ called 911 in response to an altercation and/or an attempted break in to the premises. In response to her request for assistance Police Officer Mark Stevenson (Shield No. 7132) along with several other officers, unknown to the plaintiff's at this time, appeared on the scene. Police Officer Stevenson, along with the other officers present arrested the Plaintiff KRYSTAL RODRIGUEZ without any legal justification.

9. Plaintiff KRYSTAL RODRIGUEZ was unlawfully arrested and detained for 48 hours without any legal justification.

10. Plaintiff KRYSTAL RODRIGUEZ sustained physical, emotional and psychological as a result of the wanton, reckless and negligent acts of the defendants.

11. Within 90 days after the causes of action accrued and more than 30 days prior to the commencement of this action Plaintiff's KRYSTAL RODRIGUEZ and JUAN JOSE RODRIGUEZ caused a Notice of Claim sworn to by and on behalf of the claimants, the Plaintiffs herein, containing the statement of the name and place of residence of the claimants by the street and number and their attorney, detailing the time when the particular claims arose and circumstances which gave rise to the damages and injuries sustained, the cause thereof and the nature and extent of the injuries to be served on defendant City of New York, their agents, servants and employees at the New York City Law Department.

12. This action is being commenced within one year and ninety days after the accrual of the causes of action and for more than thirty days prior to the commencement of this action defendant New York City has failed to make an adjustment of the claims.

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFF KRYSTAL RODRIGUEZ

13. Plaintiff KRYSTAL RODRIGUEZ repeats, reiterates and re-alleges every allegation contained in paragraphs 1-12 with the same force and effect as if fully set forth at length herein.

14. On or about March 18, 2016 Plaintiff KRYSTAL RODRIGUEZ was arrested without probable cause or any legal justification by members of the NEW YORK CITY POLICE DEPARTMENT acting as agents, servants and/or employees of the City of New York.

15. On or about March 18, 2016 Plaintiff KRYSTAL RODRIGUEZ was taken by members of the NEW YORK CITY POLICE DEPARTMENT acting as agents, servants and/or employees of the City of New York without probable cause, legal justification or provocation was seized, arrested and taken to the 41st precinct by use of excessive and unreasonable force.

16. On or about March 18, 2016 Plaintiff KRYSTAL RODRIGUEZ while lawfully on the premises of 674 Casanova Street, Bronx New York 10474 was arrested and without just cause maliciously and intentionally deprived of her freedom.

17. On or about March 18, 2016 Plaintiff KRYSTAL RODRIGUEZ was taken to the 41st precinct and deprived of food, water and access to bathroom facilities.

18. On or about March 18, 2016 Plaintiff KRYSTAL RODRIGUEZ was taken to the various precincts and correctional facilities and deprived of food, water and access to bathroom facilities.

19. On or about March 18, 2016 Plaintiff KRYSTAL RODRIGUEZ was photographed and had her fingerprints taken without her consent and taken to the Criminal Courthouse located in County of the Bronx, City of New York and State of New York.

20. On or about March 18, 2016 Plaintiff KRYSTAL RODRIGUEZ was seized, arrested, detained and confined and said seizure, arrest detention and confinement was without her consent and without legal justification.

21. That at all times mentioned the actions of defendant New York City Police Department and defendant City of New York were performed in a reckless, deliberate wanton, malicious and negligent manner.

22. That by reason of the foregoing Plaintiff KRYSTAL RODRIGUEZ has sustained damages which exceed the jurisdictional limits of all lower courts of this state.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF PLAINTIFF
KRYSTAL RODRIGUEZ**

23. Plaintiff KRYSTAL RODRIGUEZ repeats, reiterates and re-alleges every allegation

contained in paragraphs 1-22 with the same force and effect as if fully set forth at length herein.

24. The defendants, The New York City Police Department and the City of New York, through their agent, servant, employee, Police Officer Mark Stevenson, and other members of the New York City Police Department currently unknown, falsely and maliciously, and without any reasonable or probable cause whatsoever falsely arrested and imprisoned Plaintiff KRYSTAL RODRIGUEZ.

25. The actions of the defendants were conducted with malice and bad faith with the intention of depriving Plaintiff KRYSTAL RODRIGUEZ of her freedom.

26. As a result of being falsely arrested and imprisoned Plaintiff KRYSTAL RODRIGUEZ was deprived of her freedom, has been subjected to scorn and ridicule, subjected to great indignity and humiliation, subjected to pain and distress of mind and body, and was presented for ridicule before her neighbors in the community.

27. That the actions of the New York City Police Department and the City of New York, through their agent, servant, employee, Police Officer Mark Stevenson and others currently unknown, were conducted in a reckless, deliberate, wilful, wanton, malicious and negligent manner.

28. That by reason of the foregoing Plaintiff KRYSTAL RODRIGUEZ has sustained damages which exceed the jurisdictional limits of all lower courts of this state.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF PLAINTIFF KRYSTAL
RODRIGUEZ**

29. Plaintiff KRYSTAL RODRIGUEZ repeats, reiterates and re-alleges every allegation contained in paragraphs 1-28 with the same force and effect as if fully set forth at length herein.

30. On or about March 18, 2016 Plaintiff KRYSTAL RODRIGUEZ while in the custody

of the defendants was intentionally assaulted, battered and humiliated by being stripped searched and photographed and being forced to be in a “stress position”, to wit being forced to sit and unable to stand.

31. That by reason of the foregoing Plaintiff KRYSTAL RODRIGUEZ has sustained damages which exceed the jurisdictional limits of all lower courts of this state.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF
KRYSTAL RODRIGUEZ**

32. Plaintiff KRYSTAL RODRIGUEZ repeats, reiterates and re-alleges every allegation contained in paragraphs 1-31 with the same force and effect as if fully set forth at length herein.

33. That the defendants THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK were grossly negligent, reckless and careless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees, among them Police Officer Mark Stevenson, in that said Police Officers, as employees of the defendants, were not qualified to be hired, retained or promoted as police officers, lacked the experience, skill, training and ability to be employed, retained and used in the manner that each was employed by the defendants.

34. That the defendants THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK failed to exercise due and necessary care and caution in its hiring, retaining, training and promoting practices in that they failed to adequately test and/or investigate the backgrounds and performances of the members of defendant THE NEW YORK CITY POLICE DEPARTMENT.

35. That the defendants THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK failed to exercise due care and caution in its hiring, retaining, training and/or

promoting practices in that the defendants failed to adequately monitor said police officers and failed to adequately discipline said police officers when they violate New York City Patrol Guidelines.

36. That the defendants THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK in that prior to and at the time of the acts complained of the defendants knew or should have known and had knowledge of the facts which would have put a reasonably prudent employer on notice that said police officers were not suitable to be hired and employed by the defendants and that this lack of training required said police officers to be adequately supervised to prevent the excessive use of force and the arrest of innocent individuals.

37. That by reason of the above the Plaintiff KRYSTAL RODRIGUEZ was arrested, falsely imprisoned and endured psychological injury.

38. That at all times herein mentioned the actions of all defendants as described above were carried out in a negligent, reckless, wanton, deliberate, wilful, wanton and malicious manner.

39. That by reason of the foregoing Plaintiff KRYSTAL RODRIGUEZ has sustained damages which exceed the jurisdictional limits of all lower courts of this state.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF KRYSTAL RODRIGUEZ

40. Plaintiff KRYSTAL RODRIGUEZ repeats, reiterates and re-alleges every allegation contained in paragraphs 1-40 with the same force and effect as if fully set forth at length herein.

41. That the arrest of Plaintiff KRYSTAL RODRIGUEZ by the defendants caused a detriment to Plaintiff KRYSTAL RODRIGUEZ or an advantage to the defendants that is not within the scope of the proper, appropriate ends of effectuating a lawful arrest.

42. That the abuse of process by the defendants caused the Plaintiff KRYSTAL

RODRIGUEZ to be damaged and suffer a loss of liberty, emotional distress, humiliation, fear and intimidation.

43. That at all times mentioned the actions of the defendants, THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK, were carried out in a negligent, reckless, wanton, deliberate, wilful, wanton and malicious manner.

44. That by reason of the foregoing Plaintiff KRYSTAL RODRIGUEZ has sustained damages which exceed the jurisdictional limits of all lower courts of this state.

**AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF KRYSTAL
RODRIGUEZ**

45. Plaintiff KRYSTAL RODRIGUEZ repeats, reiterates and re-alleges every allegation contained in paragraphs 1-44 with the same force and effect as if fully set forth at length herein.

46. That on March 18, 2017 the defendants, THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK, without probable cause or legal justification while arresting Plaintiff KRYSTAL RODRIGUEZ did seize, search, assault and commit a battery without an arrest warrant while conducting the arrest.

47. That Plaintiff KRYSTAL RODRIGUEZ was falsely arrested, unlawfully imprisoned and stripped searched without probable cause or legal justification as a result of the defendants malicious conduct.

48. That the actions of the defendants, THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK, deprived Plaintiff KRYSTAL RODRIGUEZ of her right to Due Process under the Constitution of the United States.

48. That at all times mentioned the actions of the defendants, THE NEW YORK CITY

POLICE DEPARTMENT and THE CITY OF NEW YORK, were carried out in a negligent, reckless, wanton, deliberate, wilful, wanton and malicious manner.

49. That the result of the defendants actions resulted in Plaintiff KRYSTAL RODRIGUEZ suffering loss of freedom, loss of liberty, pain and suffering, emotional distress, scorn and ridicule and loss of standing in the community.

50. That by reason of the foregoing Plaintiff KRYSTAL RODRIGUEZ has sustained damages which exceed the jurisdictional limits of all lower courts of this state.

AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF JUAN JOSE RODRIGUEZ

51. Plaintiff JUAN JOSE RODRIGUEZ repeats, reiterates and re-alleges every allegation contained in paragraphs 1-44 with the same force and effect as if fully set forth at length herein.

52. At all times herein mentioned Plaintiff JUAN JOSE RODRIGUEZ was and is a resident of the City Of New York, County of the Bronx and State of New York.

53. That on March 18, 2016 Plaintiff JUAN JOSE RODRIGUEZ was lawfully inside the premises of Hudson Livery Leasing located at 674 Casanova Street, Bronx New York 10474.

54. That Plaintiff JUAN JOSE RODRIGUEZ was unlawfully arrested and detained for 48 hours without probable cause or any legal justification.

55. That Plaintiff JUAN JOSE RODRIGUEZ while lawfully on the premises of 674 Casanova Street, Bronx New York 10474 was arrested and without just cause maliciously and intentionally deprived of his freedom.

56. Within 90 days after the causes of action accrued and more than 30 days prior to the commencement of this action Plaintiff JUAN JOSE RODRIGUEZ caused a Notice of Claim sworn

to by and on behalf of the claimants, the Plaintiffs herein, containing the statement of the name and place of residence of the claimants by the street and number and their attorney, detailing the time when the particular claims arose and circumstances which gave rise to the damages and injuries sustained, the cause thereof and the nature and extent of the injuries to be served on defendant City of New York, their agents, servants and employees at the New York City Law Department.

57. This action is being commenced within one year and ninety days after the accrual of the causes of action and for more than thirty days prior to the commencement of this action defendant New York City has failed to make an adjustment of the claims.

58. On or about March 18, 2016 Plaintiff JUAN JOSE RODRIGUEZ was taken by members of the NEW YORK CITY POLICE DEPARTMENT acting as agents, servants and/or employees of the City of New York without probable cause, legal justification or provocation was seized, arrested and taken to the 41st precinct by use of excessive and unreasonable force.

59. On or about March 18, 2016 Plaintiff JUAN JOSE RODRIGUEZ while lawfully on the premises of 674 Casanova Street, Bronx New York 10474 was arrested and without just cause maliciously and intentionally deprived of his freedom.

60. On or about March 18, 2016 Plaintiff On or about March 18, 2016 Plaintiff JUAN JOSE RODRIGUEZ was taken to the 41st precinct and deprived of food, water and access to bathroom facilities.

61. On or about March 18, 2016 Plaintiff JUAN JOSE RODRIGUEZ was taken to the various precincts and correctional facilities and deprived of food, water and access to bathroom facilities.

62. On or about March 18, 2016 Plaintiff On or about March 18, 2016 Plaintiff JUAN

JOSE RODRIGUEZ was photographed and had his fingerprints taken without his consent and taken to the Criminal Courthouse located in County of the Bronx, City of New York and State of New York.

63. On or about March 18, 2016 Plaintiff JUAN JOSE RODRIGUEZ was seized, arrested, detained and confined and said seizure, arrest detention and confinement was without his consent and without legal justification.

64. That at all times mentioned the actions of defendant New York City Police Department and defendant City of New York were performed in a reckless, deliberate wanton, malicious and negligent manner.

65. That at all times mentioned the action of defendant New York City Police Department and defendant City of New York were performed in a reckless, deliberate wanton, malicious and negligent manner.

66. That by reason of the foregoing Plaintiff JUAN JOSE RODRIGUEZ has sustained damages which exceed the jurisdictional limits of all lower courts of this state.

AS AND FOR AN EIGHTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF JUAN JOSE RODRIGUEZ

67. Plaintiff JUAN JOSE RODRIGUEZ repeats, reiterates and re-alleges every allegation contained in paragraphs 1-66 with the same force and effect as if fully set forth at length herein.

68. The defendants, The New York City Police Department and the City of New York, through their agent, servant, employee, Police Officer Mark Stevenson, and other members of the New York City Police Department currently unknown, falsely and maliciously, and without any reasonable or probable cause whatsoever falsely arrested and imprisoned Plaintiff JUAN JOSE

RODRIGUEZ.

69. The actions of the defendants were conducted with malice and bad faith with the intention of depriving Plaintiff JUAN JOSE RODRIGUEZ of his freedom.

70. As a result of being falsely arrested and imprisoned Plaintiff JUAN JOSE RODRIGUEZ was deprived of his freedom, has been subjected to scorn and ridicule, subjected to great indignity and humiliation, subjected to pain and distress of mind and body, and was presented for ridicule before his neighbors in the community.

71. That the actions of the New York City Police Department and the City of New York, through their agent, servant, employee, Police Officer Mark Stevenson and others currently unknown, were conducted in a reckless, deliberate, wilful, wanton, malicious and negligent manner.

72. That by reason of the foregoing Plaintiff JUAN JOSE RODRIGUEZ has sustained damages which exceed the jurisdictional limits of all lower courts of this state.

AS AND FOR AN NINTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF JUAN JOSE RODRIGUEZ

73. Plaintiff JUAN JOSE RODRIGUEZ repeats, reiterates and re-alleges every allegation contained in paragraphs 1-72 with the same force and effect as if fully set forth at length herein.

74. On or about March 18, 2016 Plaintiff JUAN JOSE RODRIGUEZ while in the custody of the defendants was intentionally assaulted, battered and humiliated by being stripped searched and photographed and being and being deprived of his liberty and freedom.

75. That the defendants THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK were grossly negligent, reckless and careless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees, among them Police Officer Mark

Stevenson, in that said Police Officers, as employees of the defendants, were not qualified to be hired, retained or promoted as police officers, lacked the experience, skill, training and ability to be employed, retained and used in the manner that each was employed by the defendants.

76. That the defendants THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK failed to exercise due and necessary care and caution in its hiring, retaining, training and promoting practices in that they failed to adequately test and/or investigate the backgrounds and performances of the members of defendant THE NEW YORK CITY POLICE DEPARTMENT.

77. That the defendants THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK in that prior to and at the time of the acts complained of the defendants knew or should have known and had knowledge of the facts which would have put a reasonably prudent employer on notice that said police officers were not suitable to be hired and employed by the defendants and that this lack of training required said police officers to be adequately supervised to prevent the excessive use of force and the arrest of innocent individuals.

78. That by reason of the above the Plaintiff JUAN JOSE RODRIGUEZ was arrested, falsely imprisoned and endured psychological injury.

79. That at all times herein mentioned the actions of all defendants as described above were carried out in a negligent, reckless, wanton, deliberate, wilful, wanton and malicious manner

80. That by reason of the foregoing Plaintiff JUAN JOSE RODRIGUEZ has sustained damages which exceed the jurisdictional limits of all lower courts of this state.

**AS AND FOR AN TENTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF JUAN
JOSE RODRIGUEZ**

81. Plaintiff JUAN JOSE RODRIGUEZ repeats, reiterates and re-alleges every allegation contained in paragraphs 1-80 with the same force and effect as if fully set forth at length herein.

82. That the arrest of Plaintiff JUAN JOSE RODRIGUEZ by the defendants caused a detriment to Plaintiff JUAN JOSE RODRIGUEZ or an advantage to the defendants that is not within the scope of the proper, appropriate ends of effectuating a lawful arrest.

83. That the abuse of process by the defendants caused the Plaintiff JUAN JOSE RODRIGUEZ to be damaged and suffer a loss of liberty, emotional distress, humiliation, fear and intimidation.

84. That at all times mentioned the actions of the defendants, THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK, were carried out in a negligent, reckless, wanton, deliberate, wilful, wanton and malicious manner.

85. That by reason of the foregoing Plaintiff JUAN JOSE RODRIGUEZ has sustained damages which exceed the jurisdictional limits of all lower courts of this state.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF
JUAN JOSE RODRIGUEZ**

86. Plaintiff JUAN JOSE RODRIGUEZ repeats, reiterates and re-alleges every allegation contained in paragraphs 1-44 with the same force and effect as if fully set forth at length herein.

87. That on March 18, 2017 the defendants, THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK, without probable cause or legal justification while arresting Plaintiff JUAN JOSE RODRIGUEZ did seize, search, assault and commit a battery

without an arrest warrant while conducting the arrest.

88. That the actions of the defendants, THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK, deprived Plaintiff JUAN JOSE RODRIGUEZ of his right to Due Process under the Constitution of the United States.

89. That at all times mentioned the actions of the defendants, THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK, were carried out in a negligent, reckless, wanton, deliberate, wilful, wanton and malicious manner.

90. That the result of the defendants actions resulted in Plaintiff JUAN JOSE RODRIGUEZ suffering loss of freedom, loss of liberty, pain and suffering, emotional distress, scorn and ridicule and loss of standing in the community.

91. That by reason of the foregoing Plaintiff JUAN JOSE RODRIGUEZ has sustained damages which exceed the jurisdictional limits of all lower courts of this state.

WHEREFORE, the Plaintiff KRYSTAL RODRIGUEZ demands judgment against the defendants on the First Cause of Action through the Sixth Cause of Action in a sum which exceeds the jurisdictional limits of all lower courts of this state for each cause of action, the Plaintiff JUAN JOSE RODRIGUEZ demands judgment against the defendants on the Seventh Cause of Action through the Eleventh Cause of Action in a sum which exceeds the jurisdictional limits of all lower courts of this state for each cause of action, together with attorney's fees, punitive damages, costs and disbursements of this action and such other and further relief as to this court may seem just and proper.

Dated: May 22, 2017


Jorge Sorote
30 Wall Street-Eighth Floor
New York, NY 10005-2205
(212) 804-5703

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

KRYSTAL RODRIGUEZ and JUAN JOSE RODRIGUEZ

Plaintiffs,

-against-

VERIFICATION

THE NEW YORK CITY POLICE DEPARTMENT,
and THE CITY OF NEW YORK,

Defendants.

-----X

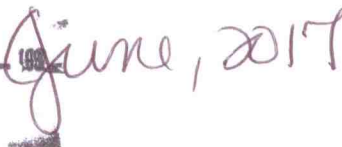
STATE OF NEW YORK)
)
COUNTY OF NEW YORK)

KRYSTAL RODRIGUEZ being duly sworn deposes and says:

I am a plaintiff in the above captioned matter and have read the foregoing complaint. I know the contents thereof to be true except for those matters alleged upon information and belief and as to those matters we also believe them to be true.


KRYSTAL RODRIGUEZ

SWORN TO BEFORE ME
ON THIS THE 7TH DAY OF
COMMISSIONER OF DEEDS


June, 2017

AIDA M. CRUEL
Commissioner of Deeds
State of New York
No. 03-6790 New York County
Commission Expires 01-01-2018



SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

KRYSTAL RODRIGUEZ and JUAN JOSE RODRIGUEZ

Plaintiffs,

-against-

VERIFICATION

THE NEW YORK CITY POLICE DEPARTMENT,
and THE CITY OF NEW YORK,

Defendants.

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STATE OF NEW YORK)
)
COUNTY OF NEW YORK)

JUAN JOSE RODRIGUEZ being duly sworn deposes and says:

I am a plaintiff in the above captioned matter and have read the foregoing complaint. I know the contents thereof to be true except for those matters alleged upon information and belief and as to those matters we also believe them to be true.


JUAN JOSE RODRIGUEZ

SWORN TO BEFORE ME
ON THIS THE 7th DAY OF June, 2017
COMMISSIONER OF DEEDS

AIDA M. CRUEL
Commissioner of Deeds
State of New York
No. 03-6790 New York County
Commission Expires 01-01-2018



INDEX NO.

Year 2017

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

KRYSTAL RODRIGUEZ and JUAN JOSE RODRIGUEZ

Plaintiffs,

-against-

THE NEW YORK CITY POLICE DEPARTMENT,
and THE CITY OF NEW YORK,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

Jorge Sorote, Esq.
Attorney for Plaintiffs
30 Wall Street-Eighth Floor
New York, New York 10005-2205
(212) 804-5703

To

Signature (Rule 130-1.1-a)

Attorney for

Service of a copy of the within

is hereby admitted .

Dated ,

Attorney for

PLEASE TAKE NOTICE:

[] NOTICE OF ENTRY

that the within is a true copy of an Order
duly entered in the office of the clerk of the within named court on

[] NOTICE OF SETTLEMENT

that an order
settlement to the HON.

On

Of which the within is a true copy will be presented for
One of the Judges of the within named court, at
, 2017 at

Dated,

Yours, etc.

Jorge Sorote, Esq.